

STATE OF NEW YORK

8169--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 5, 2025

Introduced by M. of A. ROSENTHAL -- read once and referred to the Committee on Corporations, Authorities and Commissions -- recommitted to the Committee on Corporations, Authorities and Commissions in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public authorities law, in relation to membership on the Long Island rail road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council, and in relation to the powers and duties of the permanent citizens advisory committee

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "R.I.D.E.R
2 'Rider Interests Deserve Empowering Representation' Act".

3 § 2. The section heading and subdivisions 1 and 2 of section 1204-e of
4 the public authorities law, the section heading as added by chapter 483
5 of the laws of 1981 and as renumbered by section 2 of part H of chapter
6 25 of the laws of 2009, subdivisions 1 and 2 as amended by chapter 125
7 of the laws of 2022, are amended to read as follows:

8 New York city transit [~~authority advisory~~] riders council. 1. There is
9 hereby created the New York city transit authority advisory riders coun-
10 cil, to study, investigate, monitor, and make recommendations with
11 respect to the maintenance and operation of the New York city transit
12 authority, its subsidiaries, and the Staten Island rapid transit operat-
13 ing authority. Such council shall study and investigate all aspects of
14 the day to day operations of such authority, its subsidiaries and the
15 Staten Island rapid transit operating authority, monitor their perform-
16 ance and recommend changes to improve the efficiency of the operation
17 thereof. Such council shall study and make recommendations in regard to
18 improving bicycle and pedestrian access on trains and buses, and at

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 bridges, stations and other facilities operated by the authority, its
2 affiliates and subsidiaries and the Staten Island rapid transit operat-
3 ing authority and submit such recommendations to the metropolitan trans-
4 portation authority on or before June first, two thousand twenty-two and
5 every five years thereafter.

6 2. Such council shall consist of sixteen members who shall be commu-
7 ters who regularly use the transportation services of such authorities.
8 Of the sixteen members, at least one member shall be a resident of Bronx
9 county, at least one member shall be a resident of Kings county, at
10 least one member shall be a resident of New York county, at least one
11 member shall be a resident of Richmond county, and at least one member
12 shall be a resident of Queens county. Six of such sixteen members shall
13 be appointed by the governor upon the recommendation of the mayor of the
14 city of New York[~~7~~], five upon the recommendation of the public advocate
15 of the [~~city council of the~~] city of New York[~~7~~], and five [~~other~~
16 ~~members appointed upon the recommendation one by each of the borough~~
17 ~~presidents of the boroughs of the city of New York.~~] upon the recommen-
18 dation of local elected officials in consultation with the borough pres-
19 ident of such borough of the city of New York where the member resides.
20 Provided, however, that one member recommended by the mayor of New York
21 shall have a demonstrated expertise or interest in the promotion and
22 development of improved bicycle and pedestrian access at bridges,
23 stations and other facilities operated by the metropolitan transporta-
24 tion authority, as created by section twelve hundred sixty-three of this
25 article, and such authority's affiliates and subsidiaries. The [~~chair-~~
26 ~~man~~] chairperson shall be a member selected by the membership of the
27 committee. Each of the members shall serve for a term of two years[~~7~~
28 ~~provided, however, that of the first appointments, two appointed upon~~
29 ~~the recommendation of the mayor and two appointed upon the recommenda-~~
30 ~~tion of the president of the city council shall serve for a term of one~~
31 ~~year~~]. Vacancies occurring other than by expiration of term shall be
32 filled in the same manner as the original appointments for the balance
33 of the unexpired term but shall be subject to the provisions of subdivi-
34 sion five of section twelve hundred sixty-six-i of this article.

35 § 3. The section heading and subdivisions 1 and 2 of section 1266-d of
36 the public authorities law, the section heading as added by chapter 482
37 of the laws of 1981, subdivision 1 as amended by chapter 125 of the laws
38 of 2022, and subdivision 2 as amended by chapter 802 of the laws of
39 2021, are amended to read as follows:

40 Long Island rail road [~~commuter's~~] commuter council. 1. There is here-
41 by created the Long Island rail road [~~commuter's~~] commuter council, to
42 study, investigate, monitor and make recommendations with respect to the
43 maintenance and operation of the Long Island rail road. Such council
44 shall study and investigate all aspects of the day to day operations of
45 such railroad, monitor its performance and recommend changes to improve
46 the efficiency of the operation thereof. Such council shall study and
47 make recommendations in regard to improving bicycle and pedestrian
48 access at bridges, stations and other facilities operated by the Long
49 Island Railroad and submit such recommendations to the metropolitan
50 transportation authority on or before June first, two thousand twenty-
51 two and every five years thereafter.

52 2. Such council shall consist of thirteen members who shall be commu-
53 ters who regularly use the transportation services of such railroad, and
54 who shall be residents of Nassau, Suffolk, Queens, or [~~Brooklyn~~] Kings
55 county. Members shall be appointed by the governor upon the recommenda-
56 tion of local elected officials in consultation with the county execu-

tive of ~~each such~~ Nassau or Suffolk county, provided, however, that such members shall be chosen from a list of ten names submitted by each such county executive and provided further however that no more than six members of such council shall be residents of either such county. Provided, however, that one member shall be appointed on the recommendation of a local elected official in consultation with the borough president of Queens and one member shall be appointed on the recommendation of a local elected official in consultation with the borough president of Brooklyn. Provided, however, that one member ~~[shall be]~~, appointed ~~[who has a]~~ upon the recommendation of a local elected official in consultation with the county executive or borough president of such county or borough where the member resides shall have demonstrated expertise or interest in the promotion and development of improved bicycle and pedestrian access at bridges, stations and other facilities operated by the authority and its affiliates and subsidiaries. Vacancies occurring in the membership of the council shall be filled in the same manner as original appointments, provided, however, that if the appointment prior to the vacancy was made upon the recommendation of the Nassau or Suffolk county executive, such vacancy shall be filled from a list of three names submitted by each such county executive, and provided, further, that such appointments shall be subject to the provisions of subdivision five of section twelve hundred sixty-six-i of this title.

§ 4. The section heading and subdivisions 1 and 2 of section 1266-e of the public authorities law, the section heading as added by chapter 482 of the laws of 1981, subdivision 1 as amended by chapter 125 of the laws of 2022, and subdivision 2 as amended by chapter 802 of the laws of 2021, are amended to read as follows:

Metro-North ~~[rail]~~ railroad commuter council. 1. There is hereby created the Metro-North ~~[rail]~~ railroad commuter council to study, investigate, monitor and make recommendations with respect to the maintenance and operation of those portions of, if any, the Hudson, Harlem, New Haven, Penn Access, Pascack Valley and Port Jervis commuter railroad lines remaining within the metropolitan commuter transportation district. Such council shall study and investigate all aspects of the day to day operation of such railroad lines, monitor their performance and recommend changes to improve the efficiency of the operation thereof. Such council shall study and make recommendations in regard to improving bicycle and pedestrian access at bridges, stations and other facilities operated by such railroad lines and submit such recommendations to the metropolitan transportation authority on or before June first, two thousand twenty-two and every five years thereafter.

2. Such council shall consist of twelve members and shall be commuters who regularly use the transportation services of such railroad lines. At least five of such members shall be residents of the county of Westchester. Of the other seven members, at least one of such members shall be a resident of each of the counties of Rockland, Putnam, Dutchess, Orange and Bronx, provided that such county has not withdrawn from the metropolitan commuter transportation district pursuant to section twelve hundred seventy-nine-b of this title; provided further, should only the county of Putnam remain in the metropolitan commuter transportation district then membership on such council shall consist of eight members, six of whom reside in the county of Westchester and two of whom reside in the county of Putnam. Members shall be appointed by the governor. In making such appointments the governor shall consult with and solicit recommendations from local officials and to the extent possible appoint members who represent the ridership of the several commuter railroad

lines. Provided, however, that one member shall be appointed who has a demonstrated expertise or interest in the promotion and development of improved bicycle and pedestrian access at bridges, stations and other facilities operated by the authority and its affiliates and subsidiaries. Vacancies occurring in the membership of the council shall be filled in the same manner as original appointments but shall be subject to the provisions of subdivision five of section twelve hundred sixty-six-i of this title.

§ 5. Section 1266-i of the public authorities law, as added by section 10 of part H of chapter 25 of the laws of 2009, is amended to read as follows:

§ 1266-i. The permanent citizens advisory committee. 1. There is hereby established a permanent citizens advisory committee. The members of the committee shall consist of the following members: the Long Island Rail Road ~~[commuter's]~~ commuter council, the Metro-North railroad commuter council, and the New York city transit ~~[authority advisory]~~ riders council, as defined in section twelve hundred four-e of this ~~[chapter]~~ article.

2. Such committee shall serve as a coordinating council of the Long Island Rail Road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council, providing a regional and balanced perspective to such councils' work. Such committee shall be a source of advice to the authority and its subsidiaries and affiliates regarding matters of finance, operations, management, planning, service issues, and the capital program plans established in section twelve hundred sixty-nine-b of this title as well as any other capital plans of such authority. Such committee shall have the same access to information of the authority and its subsidiaries and affiliates as the Long Island Rail Road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council.

3. The metropolitan transportation authority and its applicable constituent agencies shall prepare a response to requests for information related to such committee's work made by the Long Island Rail Road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council within thirty days of receipt of such request.

4. The members of the Long Island Rail Road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council shall receive no compensation for their services but shall be reimbursed for actual and necessary expenses incurred in the performance of their duties.

5. Appointments to the Long Island Rail Road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council shall be made as prescribed in section twelve hundred sixty-six-d, twelve hundred sixty-six-e, or twelve hundred four-e of this article, respectively, except that if recommendations for members have not been made by an elected official endowed with the power to make such recommendation in such respective sections within ninety days of a vacancy on the Long Island Rail Road commuter council, the Metro-North railroad commuter council, or the New York city transit riders council, interim appointments may be made upon the recommendation of the executive committee and staff of the permanent citizens advisory committee for the balance of the unexpired term. Notice of such interim appointments described herein shall be included in the official meeting minutes of the permanent citizens advisory committee.

1 6. The committee shall also have employees who do not serve on the
2 commuters and riders councils described in this section, but who are
3 employed by the authority to serve the committee. The authority shall
4 provide appropriate funding for such employees who are selected by and
5 dedicated to the committee, and shall not withhold, withdraw, reduce, or
6 take any other action which threatens or appears to threaten funding for
7 such employees due to the committee and its employees taking editorial,
8 governance, and/or public policy positions which differ from those of
9 the authority.

10 7. The authority shall provide adequate resources and other assistance
11 to the permanent citizens advisory committee, including any assistance
12 and provision of data as will enable it to properly carry out its activ-
13 ities and operations under any provision of this chapter.

14 8. Any intellectual property created or originated by the permanent
15 citizens advisory committee shall be the sole and exclusive property of
16 such committee.

17 9. The permanent citizens advisory committee and the authority may
18 enter into agreements with each other to facilitate the provisions of
19 this section.

20 § 6. This act shall take effect immediately.